

NATIONAL DISABILITY INSURANCE SCHEME ACT 2013 - SECT 73E

Commonwealth Consolidated Acts

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Registration as a registered NDIS provider

Registration

(1) The [Commissioner](#) may register a person as a [registered NDIS provider](#) if:

(a) the person (the ***applicant***) makes an application under [section 73C](#); and

(c) the applicant has been assessed by an [approved quality auditor](#) as meeting the applicable standards and other requirements prescribed by the [NDIS Practice Standards](#); and

(d) the [Commissioner](#) is satisfied that the applicant is suitable to provide [supports](#) or services to people with disability, having regard to any matters prescribed by the [National Disability Insurance Scheme rules](#) for the purposes of this [paragraph](#); and

(e) the [Commissioner](#) is satisfied that the applicant's [key_personnel](#) (if any) are suitable to be involved in the provision of [supports](#) or services for which the applicant will be [registered](#) to provide, having regard to any matters prescribed by the [National Disability Insurance Scheme rules](#) for the purposes of this [paragraph](#); and

(f) the applicant satisfies any other requirements prescribed by the [National Disability Insurance Scheme rules](#) for the purposes of this [paragraph](#).

(2) A person may be [registered](#) in respect of one or more of the following:

(a) managing the funding of [supports](#) under [participants' plans](#);

(b) providing specified classes of [supports](#) under [participants' plans](#);

(c) providing specified classes of [supports](#) or services under the arrangements set out in Chapter 2;

(d) providing specified classes of [supports](#) or services to people with disability other than under the [National Disability Insurance Scheme](#).

(3) Despite [subsections](#) (1) and (2), if a [banning order](#) is in force in relation to the applicant, the

[Commissioner](#) must not register the applicant in a way that would be inconsistent with the [banning order](#).

Note: Under [subsection](#) 73ZN(3), a [banning order](#) may be of general or limited application.

Notice of decision to register

(4) The [Commissioner](#) must:

(a) give written notice of a decision to register, or not to register, a person as a [registered NDIS provider](#), including reasons for the decision; and

(b) if the decision is to register the person-- provide a certificate of registration, specifying the matters mentioned in [subsection](#) (5), to the person.

Certificate of registration

(5) A certificate of registration must specify:

(a) which of the following the person is a [registered NDIS provider](#) in relation to:

(i) [managing the funding for supports](#) under [plans](#);

(ii) the provision of [supports](#) under [plans](#);

(iii) the provision of [supports](#) or services under the arrangements set out in Chapter 2;

(iv) the provision of services or [supports](#) to people with disability other than under the [National Disability Insurance Scheme](#); and

(b) the classes of [supports](#) or services the person is [registered](#) to provide; and

(c) if the person is [registered](#) in respect of a class of persons--the class of persons in respect of which the provider is [registered](#); and

(d) the conditions (if any) on the registration imposed by the [Commissioner](#) under [section 73G](#); and

(e) the period for which the registration is in force; and

(f) any other matter determined in writing by the [Commissioner](#) for the purposes of this [paragraph](#).

Note: The registration of a person may be varied (see [section 73L](#)), suspended (see [section 73N](#)) or revoked (see [section 73P](#)) and the period for which the registration is in force may be extended (see [section 73K](#)) or varied (see [section 73L](#)).

(6) A determination made under [paragraph](#) (5)(f) is not a legislative instrument.